

Terms of Service — DRAFT FOR ATTORNEY REVIEW

THIS IS A PLAIN-ENGLISH FIRST DRAFT WRITTEN BY CLAUDE. NOT LEGAL ADVICE. NOT BINDING UNTIL REVIEWED, EDITED, AND APPROVED BY A LICENSED ATTORNEY IN YOUR JURISDICTION. The purpose of this draft is to save attorney drafting time. Expect the attorney to make material changes — bracket placeholders (**[STATE]** , **[ENTITY TYPE]** , etc.) signal items requiring attorney input.

Effective Date: [DATE OF ATTORNEY APPROVAL] **Last Updated:** [DATE] **Service Provider:** IEI Ventures [LLC / Inc. — confirm entity], an [STATE]-organized [ENTITY TYPE] ("IEI Ventures," "we," "us," "our")
Service: Brand Blueprint, a digital brand-development service offered by IEI Ventures.

1. Agreement to These Terms

By purchasing Brand Blueprint, completing checkout, or accessing any deliverables we provide, you ("Customer," "you," "your") agree to be bound by these Terms of Service ("Terms"). If you don't agree, do not purchase the service. You also agree to our Privacy Policy and our IP & Confidentiality Agreement, both of which you accept separately at checkout. You confirm that you are at least 18 years old, have the legal authority to enter into this agreement, and — if you are purchasing on behalf of a business entity — have authority to bind that entity.

2. What Brand Blueprint Is

Brand Blueprint is a digital, AI-assisted brand-development service that produces a set of brand deliverables based on information you provide, including brand messaging, logo options, brand kit (colors + typography), a 3-page website (Home + About + a customer-selected flex page), and a personalized go-to-market checklist. The service runs through three steps:

1. **Intake.** You complete a structured intake (currently a 60-minute one-on-one call with Tab Wolod; later, an in-app chat experience).
1. **Generation + Human Review.** Our AI system, built around our proprietary methodology ("The IEI Brand System"), generates draft deliverables. Tab Wolod personally reviews and refines every output before delivery.
1. **Delivery.** You receive your deliverables by email, in the formats described for the tier you purchased.

The specific deliverables depend on the tier you purchase. Tier descriptions on our website at the time of your purchase control what is included.

3. Tiers and Pricing

We currently offer three tiers, priced as posted on our website at the time of purchase. Prices are in U.S. dollars and exclude any applicable taxes. We may change pricing at any time; changes apply to future purchases only, not to purchases already completed. You authorize us (via our payment processor, Stripe, Inc.) to charge your selected payment method for the full amount of your chosen tier at the time of checkout.

4. Refund Policy

"Love it or your money back." You receive a **watermarked preview** of your Brand Blueprint before any final files are delivered to you. You have full opportunity to review the preview, request revisions (one round included), or decline before committing to the final purchase.

4a. 7-Day Money-Back Window (after preview)

You may request a full refund within **7 calendar days of receiving your watermarked preview**, no questions asked, by clicking the "Decline + Refund" button in your delivery email or by emailing [REFUND EMAIL]. Refunds are processed within 5-10 business days back to your original payment method. To receive a refund, you confirm that:

- You have not used the watermarked preview files commercially;
- You will delete all preview files you downloaded;
- You understand your access to the brand files will be revoked.

These obligations protect IEI Ventures' intellectual property and ensure the refund process is fair to both parties.

4b. Acceptance Closes the Refund Window

When you click "Accept Final Delivery" in your preview email, you confirm:

- You have reviewed the deliverables and find them satisfactory;
- You wish to receive the clean (unwatermarked) final files;
- You waive your right to a full refund under section 4a.

After acceptance, refunds are NOT available based on subjective dissatisfaction with creative or strategic choices. Branding is inherently subjective and you exercised your judgment when you accepted.

4c. Production Defects (Post-Acceptance)

If, after acceptance, you discover a **production defect** in your final files — examples include corrupted files, missing pages, wrong dimensions, broken logos, typos in your business name on cover materials — we will repair the defect at no charge and re-deliver within 3 business days. If the defect is unrepairable,

we will issue a full refund at our discretion. Production defects do NOT include subjective complaints (e.g., "I don't like this color anymore," "I want a different tagline") — those should be addressed during the preview-and-revisions phase.

4d. One Free Revision Round (Before Acceptance)

If your preview is close but needs adjustments, you may request **one round of revisions free** by clicking "Request Revisions" in your delivery email. Our AI will ask 1-2 clarifying questions and regenerate the affected sections. Tab will personally review the revised output before sending you the updated preview. Additional revision rounds beyond the first are available via:

- **Premium upgrade** (+\$1,000 — includes a 60-min Brand-Storming call with Tab and unlimited revisions until you love it);
- **Single Refinement Pass** (\$297 — one more round of AI revisions with Tab's review).

4e. Discretionary Adjustments

Outside the standard refund window, IEI Ventures may, at our sole discretion, offer partial refunds, credits, or service credits in cases where extenuating circumstances apply. Decisions are made on a case-by-case basis.

4f. Automatic Acceptance After 7 Days of Inaction

If you take no action — neither accepting, requesting revisions, nor declining — within **7 calendar days of receiving your watermarked preview email**, your Brand Blueprint will be automatically accepted on your behalf. At that point:

- Clean (unwatermarked) final files will be delivered to your registered email;
- Your refund eligibility under Section 4a will close;
- The standard production-defect protections under Section 4c remain available;
- You will be notified by email when auto-acceptance triggers.

We will also send you reminder emails at **Day 4** and **Day 6** of inaction, clearly stating the upcoming auto-acceptance. This automatic acceptance protects both parties: you do not lose access to your purchased deliverables indefinitely, and we do not have orders sitting in perpetual limbo. By purchasing Brand Blueprint, you acknowledge and agree to this automatic-acceptance mechanism. Customers who wish to actively manage their preview should respond within the 7-day window.

5. Delivery Timeline

We aim to deliver your watermarked preview within **24 hours** of completing your chat intake. AI generation typically completes within 30 minutes; Tab personally reviews every Brand Blueprint before it is sent to you, which adds review time (typically 2-6 hours during business hours). If delivery will be

delayed beyond 48 hours, we will email you with an updated timeline. Once you accept your preview by clicking "Accept Final Delivery," your clean (unwatermarked) final files are delivered immediately via secure download link valid for 90 days.

6. What YOU Own (Outputs)

The brand deliverables we create specifically for you — your brand messaging, mission, vision, values, taglines, logo options, color palette, typography selections, website page, GTM checklist, content posts, narrative documents, and other tier-specific outputs (collectively, the "Outputs") — are yours. Upon full payment, **we assign to you all our rights** in the Outputs, except for: (a) third-party assets included in or referenced by the Outputs (fonts, stock imagery, software dependencies, AI-model contributions) which remain governed by their respective licenses; and (b) our IEI Brand System methodology, frameworks, prompts, and software used to produce the Outputs, which we retain (see Section 7). You are free to use, modify, publish, sell, and license your Outputs for any lawful purpose, commercial or otherwise. You do not owe us royalties or attribution, though attribution is appreciated. **Important:** You are responsible for ensuring that your use of the Outputs does not infringe on any third party's intellectual property rights, including trademarks. We provide no warranty that the brand name, logo, copy, or other Outputs are clear of third-party trademark or copyright conflicts. Before commercial use, you should conduct your own trademark clearance and, where appropriate, engage qualified counsel.

7. What WE Own (The IEI Brand System and Service)

We retain all right, title, and interest in:

- **The IEI Brand System** — our proprietary brand-development methodology, including but not limited to: the 6-module structure, the Fourfold Path to Meaningful Marketing, the ABCs of Branding (Authentic Brand Creation), the 6-Part Offering Framework, the 5-Post Framework, the 7-Part Narrative, Dream 100 Lite, and all associated frameworks, scripts, and proprietary terminology.
- **Software, AI prompts, and infrastructure** that operate the service.
- **Worksheets, templates, exemplars, and reference materials** that we use internally to produce Outputs.
- **The Brand Blueprint and IEI Ventures brand assets** — trademarks, logos, copy, marketing materials.

Your purchase grants you no license to copy, replicate, distribute, train AI models on, reverse engineer, sublicense, or commercially exploit the IEI Brand System or our software. The Outputs you receive are the product of the system — you don't get the system itself.

8. Your Submitted Content

In the course of intake, you will share information about your business, your story, your audience, your offerings, and your goals ("Your Content"). Your Content remains yours. By submitting Your Content, you grant us a limited, non-exclusive, worldwide, royalty-free license to:

- Use Your Content to produce the Outputs you purchased;
- Store Your Content for the duration of your relationship with us plus 90 days for support, after which we delete or anonymize it (see Privacy Policy);
- Share Your Content with our service providers (Stripe, Anthropic for AI generation, our email provider) solely to fulfill the service;
- Create anonymized, aggregated learnings from Your Content to improve the service (e.g., we may learn from patterns across many customers that certain question framings produce better results).

We do not share Your Content publicly without your written permission. If you opt in to provide a testimonial or be featured as a reference customer, that's a separate permission you grant. You warrant that Your Content does not infringe any third party's rights, is not defamatory, and is yours to share.

9. AI-Generated Content Disclosure

Brand Blueprint uses generative artificial intelligence, including third-party large language models, to produce the first drafts of your Outputs. Tab Wolod personally reviews and refines all Outputs before delivery, but:

- AI-generated content may contain errors, inaccuracies, or stylistic inconsistencies;
 - AI may produce content similar to content produced for other customers (we mitigate via our methodology, persona work, and human review, but cannot guarantee complete uniqueness at the level of any individual word or phrase);
 - You should review all Outputs carefully before publishing or commercial use;
 - Our AI service provider (currently Anthropic, PBC) does not train its commercial models on our or your data, per Anthropic's commercial terms.
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10. Disclaimer of Warranties

THE SERVICE AND OUTPUTS ARE PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING (BUT NOT LIMITED TO) IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, OR COMMERCIAL SUCCESS. We do not warrant that:

- Your business will succeed using the Outputs;

- The Outputs will be free of all errors or aesthetically perfect;
 - The Outputs will be cleared of all third-party trademark or copyright conflicts;
 - The service will be uninterrupted or available 24/7.
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11. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, OUR AGGREGATE LIABILITY TO YOU FOR ANY CLAIM ARISING OUT OF OR RELATED TO THESE TERMS OR THE SERVICE — REGARDLESS OF LEGAL THEORY (CONTRACT, TORT, STATUTE, OR OTHERWISE) — IS LIMITED TO THE AMOUNT YOU ACTUALLY PAID TO US FOR THE SERVICE IN THE 12 MONTHS PRECEDING THE CLAIM. WE ARE NOT LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES (INCLUDING LOST PROFITS, LOST REVENUE, LOST DATA, OR BUSINESS INTERRUPTION), EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. Some jurisdictions don't allow these limitations, so they may not apply to you in full.

12. Indemnification

You agree to indemnify, defend, and hold harmless IEI Ventures, its officers, employees, and contractors from any claim, loss, damage, liability, cost, or expense (including reasonable attorneys' fees) arising out of:

- Your use, publication, or commercial exploitation of the Outputs;
 - Your breach of these Terms, the Privacy Policy, or the IP & Confidentiality Agreement;
 - Your violation of any third party's rights (including intellectual property rights);
 - Any claim that Your Content infringes a third party's rights or is unlawful.
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13. Termination

You may stop using the service at any time. We may suspend or terminate your access to the service if you breach these Terms, including by attempting to copy or reverse-engineer our methodology, abusing our staff, or charging back a legitimate payment. Termination does not affect rights and obligations that accrued before termination, including your right to use already-delivered Outputs (subject to these Terms) and our right to retain payment for work performed.

14. Changes to These Terms

We may update these Terms from time to time. If we make material changes, we will notify customers with active or pending orders by email at least 14 days before the changes take effect. Continued use of the service after the effective date means you accept the updated Terms.

15. Governing Law and Dispute Resolution

These Terms are governed by the laws of [STATE], without regard to conflict-of-laws principles. Any dispute arising under or in connection with these Terms will be resolved by [BINDING ARBITRATION in COUNTY, STATE administered by the American Arbitration Association under its Commercial Arbitration Rules] / [the state or federal courts located in COUNTY, STATE]. **[Attorney to confirm preferred dispute resolution mechanism — arbitration vs. courts, class-action waiver, individual vs. class basis.]** You and we both waive the right to a jury trial. If any provision of these Terms is found unenforceable, the rest remain in effect.

16. Contact

Questions about these Terms? **Email:** [LEGAL EMAIL, e.g., legal@ieiventures.com] **Mailing Address:** [IEI VENTURES MAILING ADDRESS]

Items Specifically Flagged for Attorney Attention

1. **Entity confirmation** — Section 1: confirm legal entity name, state of organization, entity type.
1. **Refund mechanics** — Section 4: confirm 24-hour window is enforceable in your jurisdiction; some states require longer cooling-off periods for distance sales.
1. **IP assignment vs. license to customer** — Section 6: I drafted as assignment of Outputs to customer upon payment. Confirm this matches your business intent (assignment is stronger for customer; license is more protective for you).
1. **Trademark clearance disclaimer** — Section 6: confirm scope is adequate. Consider whether to require customer attestation at checkout.
1. **AI disclosure** — Section 9: state laws (California, Utah, others) are evolving fast. Confirm current 2026 requirements.
1. **Limitation of liability cap** — Section 11: confirm 12 months / amount-paid cap is enforceable; some jurisdictions require unenforceable carve-outs for gross negligence, willful misconduct, etc.

1. **Dispute resolution** — Section 15: arbitration vs. courts is a strategic call. Arbitration is faster + private; courts are more protective for consumers and more common for B2C contracts.
1. **Consumer protection laws** — confirm compliance with FTC's Click-to-Cancel rule (effective 2025), state distance-sales rules, and any state-specific service-contract requirements.
1. **AI service provider language** — Section 9: confirm we can reference Anthropic by name without contractual issue; consider generic phrasing instead ("third-party AI service providers").